

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3599

By: Lepak

AS INTRODUCED

An Act relating to Medicaid; directing the Oklahoma Health Care Authority to file a waiver or state plan amendment; directing for an expansion in cost-sharing; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 4012 of Title 56, unless there is created a duplication in numbering, reads as follows:

A. The Oklahoma Health Care Authority shall file a Medicaid waiver or state plan amendment, as necessary, on or before January 1, 2027, to impose a cost-sharing requirement of Thirty-five Dollars (\$35.00) per provision of care, items, or services for expansion enrollees, subject to federal limitations on cost-sharing and eligibility limitations under 42 U.S.C. Section 1396a. The Oklahoma Health Care Authority shall not reduce the cost-sharing requirement for an expansion enrollee's nonemergency use of emergency departments below Thirty-five Dollars (\$35.00). The total aggregate

1 amount of cost-sharing charges imposed under the state plan for all
2 individuals in the family may not exceed five percent (5%) of the
3 family income, as applied on a quarterly basis.

4 B. A provider participating under the state plan may require as
5 a condition for the provision of care, items, or services to an
6 expansion enrollee, payment of cost-sharing charges under the state
7 plan pursuant to subsection A of this section. The amount of any
8 required payment of cost-sharing for an expansion enrollee shall be
9 deducted from the payment to a participating provider, regardless of
10 whether that provider elects to require payment of such charges.

11 SECTION 2. This act shall become effective November 1, 2026.

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